FIM Terms of Service

Last updated: July 27, 2026

Welcome to the FIM (File Integrity Monitoring) Terms of Service, provided by **Achiefs, LLC**.

These Terms of Service ("Terms") govern the access and use of services offered by Achiefs, LLC in connection with FIM, including but not limited to documentation, technical support, software updates, and any other service related to the FIM Software.

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1. Acceptance of Terms

By accessing, using, or requesting services offered by Achiefs, LLC in connection with FIM, you agree to be bound by these Terms of Service. If you act on behalf of a company or organization, you represent that you have the authority to bind such organization.

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2. Definitions

- **"Software"**: refers to the FIM file integrity monitoring program, including all versions, updates, and derivatives.
- **"Service(s)"**: refers to the documentation, technical support, software updates, community (Slack), and any other service offered by Achiefs, LLC in connection with FIM.
- **"User"**: any person or organization that accesses or uses the Software or Services.
- **"User Data"**: all information, including files, metadata, events, and logs, generated or processed by the User through the use of the Software.

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3. Service Description

3.1 Software

Achiefs, LLC develops and distributes FIM as open source software under the GNU General Public License version 3 (GPL v3). The Software enables file integrity monitoring on Linux, macOS, and Windows systems.

3.2 Documentation

Achiefs, LLC provides technical documentation, installation and configuration guides, and support materials at documentation.achiefs.com.

3.3 Technical Support

Achiefs, LLC provides technical support through: - **Email:** support@achiefs.com - **Community:** FIM Slack Workspace - **GitHub Issues:** github.com/Achiefs/fim/issues

Standard support is provided without guaranteed response times. Premium support will be addressed within a reasonable period within the limits established in the corresponding agreement.

3.4 Updates

Achiefs, LLC may release updates, patches, and new versions of the Software periodically. Updates are subject to the same terms of the GPL v3 license.

If the client requires premium support, custom deployment, or other additional services, Achiefs, LLC may offer such services upon prior agreement between the parties, through a specific contract that will govern the conditions, scope, and fees for such services.

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4. Acceptable Use

The User agrees to:

1. Use the Software and Services solely for lawful and responsible purposes.
2. Not attempt to reverse engineer, decompile, or disassemble the Software, except as expressly permitted by GPL v3.

3. Not use the Software for illegal, malicious, or harmful activities to third-party systems.
4. Be responsible for maintaining the security of access credentials for any external integration configured with the Software.
5. Not use the Services for spam, malware distribution, phishing, or any other fraudulent activities.

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5. User Data and Privacy Protection

5.1 Local processing

FIM processes file monitoring data exclusively in the User's local environment. Achiefs, LLC does not access, store, or process User Data, unless the User voluntarily provides such information (e.g., when reporting a technical issue).

5.2 User responsibility

The User is responsible for the data processing generated by the use of the Software, including: - Ensuring compliance with applicable data protection regulations (GDPR, LOPDGDD, etc.). - Obtaining necessary consents if the monitoring includes personal data. - Implementing appropriate security measures to protect User Data.

5.3 Third-party integrations

When the Software is configured to integrate with third-party services (ElasticSearch, OpenSearch, Wazuh, etc.), the User will be responsible for managing the corresponding data protection obligations for such integrations. Achiefs, LLC is not responsible for data processing by such third parties.

5.4 Technical support

If the User requests technical support and provides logs, configurations, or diagnostic data, Achiefs, LLC will use them exclusively to resolve the reported issue. This data will not be shared with third parties or used for any other purpose.

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6. Intellectual Property

The FIM Software, documentation, and all material related to the Services are owned by Achiefs, LLC or their respective rights holders. The GPL v3 license grants specific permissions over the Software's source code but does not transfer ownership of copyrights, trademarks, or other intellectual property assets.

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7. Paid Services

7.1 Current model

FIM is distributed as open source software under the GPL v3 license.

7.2 Premium services

Achiefs, LLC offers premium services and enterprise support for clients requiring specialized support, custom deployment, or other additional features. Such services will be offered upon prior agreement between the parties, through a specific contract that will govern the conditions, scope, responsibilities, and fees for the contracted services.

7.3 Payments

Any paid service will be subject to: - A fee previously agreed upon and communicated to the User. - A secure payment method. - Invoicing in compliance with applicable tax legislation. - A refund policy that will be communicated before purchase.

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8. Disclaimer of Warranties

THE SERVICES ARE PROVIDED "AS IS" AND "AS AVAILABLE", WITHOUT WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED. ACHIEFS, LLC DOES NOT WARRANT THAT:

- The Services will be available continuously, securely, or error-free.
- The Software will meet the User's expectations or specific requirements.
- Results obtained through the use of the Software will be accurate, complete, or useful.

- The documentation will be comprehensive or always up to date.

THIS DISCLAIMER OF WARRANTIES IS CONSISTENT WITH SECTION 15 OF GPL v3.

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9. Limitation of Liability

IN NO EVENT SHALL ACHIEFS, LLC, ITS DEVELOPERS, COLLABORATORS, OR PARTNERS BE LIABLE TO THE USER OR THIRD PARTIES FOR:

- Direct, indirect, incidental, special, consequential, or punitive damages.
- Data loss, service interruption, loss of business or profits.
- Damages resulting from the use or inability to use the Software or Services.
- Any action or omission by third parties arising from integration with the Software.

EVEN IF ACHIEFS, LLC HAS BEEN INFORMED OF THE POSSIBILITY OF SUCH DAMAGES.

THIS LIMITATION OF LIABILITY IS CONSISTENT WITH SECTION 16 OF GPL v3.

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10. User Responsibility

The User assumes full and exclusive responsibility for:

1. **Use of the Software:** any consequences resulting from the installation, configuration, or execution of the Software.
2. **File monitoring:** ensuring that monitoring complies with applicable laws, including data protection and workplace privacy legislation.
3. **External integrations:** configuration and management of connections with third-party services (ElasticSearch, OpenSearch, Wazuh, etc.).
4. **System security:** maintaining adequate security measures on systems where the Software is executed.
5. **Stored data:** ensuring the integrity, confidentiality, and availability of data processed by the Software.

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11. Termination

11.1 By the User

The User may cease using the Software and Services at any time, without need for justification.

11.2 By Achiefs, LLC

Achiefs, LLC reserves the right to suspend or terminate access to Services (in particular, technical support) in the event of: - Serious violation of these Terms. - Fraudulent or illegal use of the Software. - Activities that may damage the reputation, integrity, or operation of the Software or Services. - Violation of law or third-party intellectual property rights.

Termination will not affect rights granted under the GPL v3 license for the Software's source code.

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12. Third-Party Links

The Services may include links to third-party websites, platforms, or resources (e.g., integrations with ElasticSearch, OpenSearch, etc.). Achiefs, LLC does not control and is not responsible for the content, privacy policies, or practices of such third parties.

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13. Governing Law and Jurisdiction

These Terms of Service are governed by the laws of Spain. Any dispute arising from these Terms shall be submitted to the competent courts of Granada, Spain.

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14. Modifications to Terms

Achiefs, LLC reserves the right to modify these Terms of Service at any time. Modifications will be published in the project repository and/or official documentation. Continued use of the Software or Services after publication of modifications constitutes acceptance of the updated Terms.

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15. Miscellaneous Provisions

15.1 Severability

If any provision of these Terms is found to be invalid or unenforceable by a competent authority, the remaining provisions will maintain their full validity and effect.

15.2 Waiver

Achiefs, LLC's failure to enforce any provision of these Terms shall not constitute a waiver of that provision or any other provision.

15.3 Assignment

The User may not assign or transfer these Terms or their rights without Achiefs, LLC's prior written consent. Achiefs, LLC may assign these Terms in the event of a merger, acquisition, or sale of assets.

15.4 Entire Agreement

These Terms of Service constitute the complete agreement between the User and Achiefs, LLC regarding the use of the Software and Services, and supersede any prior agreement, whether verbal or written.

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16. Contact

For any inquiries related to these Terms of Service:

- **Email:** support@achiefs.com
- **Web:** documentation.achiefs.com
- **Repository:** github.com/Achiefs/fim